

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LIZA QUYEN RIVAS,

Petitioner

VS.

JIMMY A RIVAS,

Respondent

) Case Number: FDI-22-796285

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER: CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties shall appear on June 18, 2026 at 9:00 a.m. in person or via Zoom in Dept. 404 to address the issues raised in Mother's RFO to modify custody and visitation. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Liza Quyen Rivas (Mother) and Jimmy A. Rivas (Father) are the married parents of Aurora Rivas, age 8 (DOB 7/14/2017) and Jimmy Kai Rivas, age 5 (DOB 8/22/2-2020).
- 2) On June 29, 2022, the parents stipulated that, pending further proceedings, the children would be in their joint physical and joint legal custody. They agreed that Aurora would spend each weekend with Father from Friday at 5:00 p.m. until Sunday at 5:00 p.m. Father's parenting time with Jimmy was to be arranged by mutual agreement. The parents further agreed to alternate time with the children on Thanksgiving, Christmas Day and New Year's Eve.

- 1 3) On March 25, 2025, Mother filed a Request For Order (RFO) to modify custody and visitation.
2 Mother alleged that the parties had not been following the stipulated parenting plan for
3 approximately two years. She declared that Father had missed many visits with Aurora, and that
4 on prior visits during the summer of 2025, Father appeared to be under the influence of alcohol.
5 Mother further declared that Father asked her to drive to Pittsburg to drop the children off for
6 visits, stating that it is not worth his time to drive to San Francisco. Finally, Mother alleged that
7 when Father attempted to telephone or videocall the children between visits, the children often do
8 not want to speak with him.
- 9 4) Mother requested that the children be placed in her sole legal and sole physical custody. She
10 asked that Father's parenting time be modified to Sundays from 11:00 a.m. to 6:00 p.m. in San
11 Francisco. Mother expressed the hope that if Father were required to drive into San Francisco to
12 see the children that he would remain sober.
- 13 5) Father did not file a written Response to Mother's RFO.

14 **B. Findings and Order**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 children is the United States.
- 19 2) **The parties shall appear on June 18, 2026 at 9:00 a.m. in person or via Zoom in Dept. 404 to**
20 **address the issues raised in Mother's RFO to modify custody and visitation.**
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